

5TH SCH.
—cont.

Session and Chapter.	Short Title.	Extent of Repeal.
11 & 12 Geo. 5. c. 1.	The Unemployment Insurance Act, 1921.	Section four.
11 & 12 Geo. 5. c. 15.	The Unemployment Insurance (No. 2) Act, 1921.	Section twelve, as from the first day of January, nineteen hundred and twenty-nine.
12 & 13 Geo. 5. c. 7.	The Unemployment Insurance Act, 1922.	Section thirteen, subsections (2) and (3) of section sixteen, and, as from the first day of January, nineteen hundred and twenty-nine, section nine.
14 & 15 Geo. 5. c. 6.	The Unemployment Insurance (No. 3) Act, 1924.	The whole Act.
14 & 15 Geo. 5. c. 30.	The Unemployment Insurance (No. 2) Act, 1924.	Section one except subsections (4) and (5), subsection (1) of section two, subsection (2) of section three, subsection (1) of section eight, subsections (3) and (4) of section seventeen, and paragraph 3 (b) of the First Schedule.
15 & 16 Geo. 5. c. 69.	The Unemployment Insurance Act, 1925.	Sections one and two.

CHAPTER 31.

An Act to amend the law with respect to the effect of surcharges by district auditors, appeals from decisions of district auditors, and the recovery of sums certified to be due by district auditors.

[22nd December 1927.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Disqualifi-
cation of

1.—(1) Subject to the provisions of this Act, every person who, at any audit, has been surcharged with an

amount exceeding five hundred pounds by a district auditor shall for a period of five years commencing at the expiration of the period allowed for making an appeal or application with respect to the surcharge under the provisions of this Act or, if such an appeal or application is made, commencing on the date on which such an appeal or application is finally disposed of or abandoned or fails by reason of the non-prosecution thereof, be disqualified for being elected or appointed or being a member of any local authority, and if he is a member of a local authority his office shall thereupon become vacant :

persons
surcharged
more than
five hundred
pounds.

Provided that this section shall not apply to a surcharge in respect of any expenditure or loss incurred before the thirty-first day of October, nineteen hundred and twenty-seven.

(2) Where more than one-third of the members of a local authority become disqualified at the same time by virtue of this Act, then until the number of the members in office is increased to not less than two-thirds of the full number of members of the local authority—

- (a) the quorum of the local authority shall be determined by reference to the number of the members of the local authority remaining qualified instead of by reference to the full number of members of the local authority;
- (b) no provision preventing a returning officer holding an election to fill a casual vacancy shall apply to any vacancy in the office of members of that local authority.

(3) If any person acts as a member of any local authority when disqualified under this section, he shall for each offence be liable on summary conviction to a fine not exceeding twenty pounds.

2.—(1) Any person who is aggrieved by a decision of a district auditor on any matter with respect to which he made representations at the audit, and any person aggrieved by a disallowance or surcharge of a district auditor may, where the disallowance or surcharge or other decision relates to an amount exceeding five hundred pounds, appeal to the High Court, and may in any other case appeal either to the High Court or to

Appeals
against
decisions
of auditors.

the Minister of Health (hereinafter referred to as the "Minister") and the Court or Minister shall have power to confirm, vary or quash the decision of the auditor, and to remit the case to the auditor with such directions as the Court or Minister thinks fit for giving effect to the decision on appeal, and if the decision of the auditor is quashed, or is varied so as to reduce the amount of the surcharge to five hundred pounds or less, the appellant shall not be subject to the disqualification imposed by this Act.

Where an appeal is made to the Minister under this subsection, he may at any stage of the proceedings, and shall, if so directed by the High Court, state in the form of a special case for the opinion of the Court any question of law arising in the course of the appeal but save as aforesaid the decision of the Minister shall not be subject to appeal to any Court.

(2) In the case of a surcharge the person surcharged may, whether or not he appeals under the last preceding subsection, apply to the tribunal (whether the High Court or the Minister) to which he appeals or, if he does not appeal, to the tribunal (whether the High Court or the Minister) to which he might have appealed, for a declaration that in relation to the subject matter of the surcharge he acted reasonably or in the belief that his action was authorised by law, and the Court or Minister, if satisfied that there is proper ground for doing so, may make a declaration to that effect, and where such a declaration is made the person surcharged, if by reason of the surcharge he is subject to the disqualification imposed by this Act, shall not be subject to that disqualification, and the Court or Minister may, if satisfied that the person surcharged ought fairly to be excused, relieve him either wholly or partly from personal liability in respect of the surcharge; the decision of the Court or Minister under this subsection shall be final and shall not be subject to appeal.

(3) Provision may be made by rules of court for regulating appeals and applications to the High Court under this section, and those rules shall provide for limiting the time within which such appeals and applications may be made, and for securing that where an application is made public notice of the hearing shall be given, and for enabling any ratepayer or owner of

property in the area of the authority to whose accounts the surcharge relates, to appear at the hearing and object.

(4) Where under this section an appeal or application is made to the Minister, the appellant or applicant shall be entitled, if he so desires, to a personal hearing by a person appointed for the purpose by the Minister.

(5) The provisions as to the payment of costs applicable to appeals under any enactment repealed by this Act shall apply to appeals and applications to the Court under this section.

(6) Where any proceedings in the High Court under section thirty-five of the Poor Law Amendment Act, 1844, or under that section as applied by any other enactment, for the removal into the High Court of any disallowance or surcharge were instituted before the fourteenth day of February, nineteen hundred and twenty-seven, and the surcharge in respect of which the proceedings were instituted has not been enforced at the passing of this Act, no proceedings for the enforcement thereof shall be taken. 7 & 8 Vict.
c. 101.

3.—(1) Notwithstanding anything contained in any enactment relating to audit by district auditors, any sum which is certified by a district auditor to be due shall be recoverable either summarily or otherwise as a civil debt, and in any proceedings for the recovery of such a sum any certificate purporting to be signed by a district auditor shall, unless the contrary is proved, be deemed to be a certificate signed by a district auditor, and a certificate signed by a district auditor shall be conclusive evidence of the facts certified, and a certificate purporting to be signed by the treasurer of the local authority concerned that the sum certified to be due has not been paid to him shall be sufficient evidence of non-payment, unless it is proved that the sum certified to be due has been paid to the treasurer subsequently to the date of the treasurer's certificate. Recovery of
sums certi-
fied by the
auditor.

(2) The provisions as to the payment of costs applicable to the proceedings under the enactments repealed by this Act for the recovery of sums certified by a district auditor to be due shall apply to proceedings under this section.

Short title,
application,
repeal and
extent.

4.—(1) This Act may be cited as the Audit (Local Authorities) Act, 1927.

(2) This Act shall not, save as provided by subsection (6) of section two of this Act, apply to any accounts if and so far as they relate to expenditure or loss incurred before the thirty-first day of October, nineteen hundred and twenty-seven.

38 & 39 Vict.
c. 83.

(3) In this Act, the expression "local authority" has the same meaning as in the Local Loans Act, 1875, and includes any committee of a local authority, and a joint committee of, or a joint board representative of, two or more local authorities.

(4) The enactments mentioned in the Schedule to this Act to the extent specified in the third column of that Schedule are hereby repealed:

Provided that nothing in this repeal shall affect the enactments repealed in their application to any accounts if and so far as they relate to expenditure or loss incurred before the thirty-first day of October, nineteen hundred and twenty-seven.

(5) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULE.

ENACTMENTS REPEALED.

Section 4.

Session and Chapter.	Short title.	Extent of Repeal.
38 & 39 Vict. c. 55.	The Public Health Act, 1875.	In section two hundred and forty-seven, paragraph (8).
17 & 18 Geo. 5. c. 14.	The Poor Law Act, 1927.	Subsections (2) and (3) of section one hundred and fifty-four and section one hundred and fifty-five except so far as they relate to the payment of costs. Subsections (1), (2), and (3) of section one hundred and fifty-seven. Subsection (3) of section one hundred and sixty.